Akrar Lliyas Ahmed vs The State Of N.C.T Of Delhi on 16 April, 2024

Author: Manoj Kumar Ohri

Bench: Manoj Kumar Ohri

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 239/2024
   AKRAR LLIYAS AHMED .....
   Through: Mr. Sudarshan Rajan and
   Bajaj, Advocates.
   versus

   THE STATE OF N.C.T OF DELHI
   Through: Mr. Laksh Khanna,
   Mr. N.K. Agarwa
   complainant.
   CORAM:
   HON'BLE MR. JUSTICE MANOJ KUMAR OHRI
   ORDER

% 16.04.2024

1. The present bail application has been filed under Section 439 Cr.P.C. read with Section 482 Cr.P.C. by the petitioner/applicant seeking regular bail in FIR No. 126/2023 registered under Sections 420/468/471/389/170/120B IPC at Police Station Special Cell, Delhi.

2. Mr. Sudarshan Rajan, learned counsel for the applicant states that the applicant is in custody since 23.05.2023 and that the charge-sheet has already been filed. He submits that while in the present case the FIR was registered on 10.05.2023, the applicant who himself is a victim of fraud had given a complaint on 08.05.2023 (received in Police Station on 10.05.2023) in which it has stated that on 18.04.2023, he had received an anonymous call from an unknown person in which he was given a business proposal by one person who identified himself as Mahera. He states that the applicant being innocent, accepted the proposal on which he was promised that on a transaction done on his bank account, he would get a commission of 1%. He This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 27/04/2024 at 02:33:59 submits that out of the alleged amount of Rs.1.19 crores received in the account of the applicant, the applicant is a beneficiary to the extent of only Rs.1 lac which was transferred in his second account. He further submits that some of the co-accused namely Shivam, Vishal, Amiruddin, Abarar and Dinesh Eknath have already been released on regular bail.

3. Mr. Laksh Khanna, learned APP for State duly assisted by learned counsel for the complainant has opposed the bail application. It is stated that the applicant in his complaint has alleged that he had received a call from an anonymous person, who later identified himself as Mahera. The Whatsapp chats annexed with the instant bail application show the applicant was in contact with the aforesaid Mahera since 17.01.2023. It is stated that a perusal of Whatsapp chats would show that there are talks of opening bank accounts as well as of increasing the credit limits. It is stated that though the applicant is projecting himself as an innocent victim however he is one of the main beneficiaries as out of total cheated amount of Rs.4.47 crores, a sum of Rs.1.19 crore has gone into the applicant's account. It is further stated that immediately on receipt of the said amount, a sum of Rs.79 lacs and Rs.40 lacs was transferred to the account of two different companies, both of which are fake accounts and upon investigation, no further details in regards to the same could be found. It is stated that four out of the aforesaid five co-accused who have been released on bail were on the basis of settlement arrived at between the parties and the fifth accused was released on bail as his role was opined to be insignificant. It is stated that on investigation, an amount of Rs 1 lac was admittedly received by the applicant from an account linked with the transactions involving the cheated amount and thus the applicant is involved in more than one accounts in This is a digitally signed order.

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4. I have heard learned counsels for the parties and has gone through the record.

5. The present case relates to online fraud and extortion. In the present case, the complainant had alleged that he received a call on 05.05.2023 thereby informing that a FedEx parcel has been seized by the Customs Department. When the complainant denied any knowledge of the same, she was made to download Skype App. When she downloaded and connected on the duly created Skype ID, she received a call from the profile of ID of Andheri Mumbai East Cyber Crime. In the said call, she was told to breakdown her fixed deposits. She alleged that during the said Skype call, many persons were connected who impersonated DCP Bal Singh Rajput and one other person who identified himself as George Mathew, an RBI official. Upon investigation, all these persons were found to be non-existing. The complainant has been made to part with a sum of Rs.4.47 crores which has allegedly gone into four different accounts.

6. Considering the gravity of the offence and the fact that Rs.1.19 crores have travelled to the account of the applicant, I find no ground to entertain the instant bail application and the same is accordingly dismissed.

7. Needless to state that nothing observed hereinabove shall amount to an expression on the merits of the case and shall not have a bearing on the trial of the case as the same has been expressed only for the purpose of the disposal of the present bail application.

MANOJ KUMAR OHRI, J APRIL 16, 2024/rd This is a digitally signed order.

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